BALBOA CAPITAL
A DIVISION OF AMERIS BANK

Welcome to Ameris Bank!

Regarding Your Agreement Number: 546134-000

Dear Valued Customer,

We would like to take this opportunity to Welcome and Thank You for choosing Ameris Bank as your financial partner. Our goal is to provide you with complete customer satisfaction and to continue to work with you on future financing. In order to effectively manage your account, we are requesting that you register and title your vehicle with the DMV by 08/30/25.

Once you register and title your vehicle please provide Ameris Bank with the DMV receipt and Email it to: docs@balboacapital.com. In the event your receipt is not received by 08/30/25, you will be charged a monthly fee until a receipt or the original title is received by Ameris Bank.

Included in this welcome packet:

- Online Account Information
- Mandatory Insurance Requirement Notification
- Executed Agreement

Additionally, Ameris Bank will invoice you for any sales tax, or other closing costs due. You may also be billed for applicable personal property tax as assessed by your county and outlined in this Agreement. In addition, there will be a monthly fee for customers who are not enrolled in our Automatic Payment Program.

If you have any questions regarding your executed Agreement, please contact us, we are here to help.

Customer Service Department
888-272-1800
CustomerService@balboacapital.com

Your Account Executive
Scott Kelbel
949-399-6362
scott.kelbel@amerisbank.com

Lastly, you can now activate your account at www.balboacapital.com/customer-center/login. Our Customer Center portal allows you to make payments, review invoices, update billing information, request additional financing, and more.

We look forward to serving you. Thank you again for choosing Ameris Bank.

Sincerely,

Ameris Bank

MANDATORY & IMPORTANT INSURANCE INFORMATION THAT NEEDS TO BE PROVIDED

Insurance Requirement Notification

Agreement Number: 546134-000
Customer Name: NORTHEAST FISH CO., LLC
Customer Address: 800 Food Center Drive
Bronx, NY 10474

Certificate of Insurance Requirements for Titled Vehicles
(For EFA Transactions)

The subject Agreement requires you to keep the vehicle insured against all risk of loss or damage. **You must provide proof of insurance as outline below within 30 days of funding in order to avoid additional charges.**

Certificate to include the following:

1. Reference Ameris Bank Contract/Agreement Number
2. Year, Make, Model and Complete VIN #
3. Actual Cash Value ("ACV") or Stated Amount (as listed on sold invoice)
4. Policy Number & Expiration Date (no less than 14 days)
5. Debtor LEGAL name and address
6. Approved Business Address and/or Equipment/Garaging Location if different
7. Ameris Bank named as Loss Payee on Physical Damage Coverage
8. Ameris Bank listed as Certificate Holder

Minimum Insurance Requirements:

• Bodily Injury Liability per Individual	State Minimum Requirements
• Bodily Injury per Accident	State Minimum Requirements
• Property Damage Liability	State Minimum Requirements
• OR Combined Single Limits	State Minimum Requirements
• Comprehensive and Collision Max Deductible	Maximum of $2,500 Each

If you did not provide a Certificate of Insurance at time of funding and do not provide this to us within 30 days, you understand that we have the right, but not the obligation, to obtain such insurance, charge you a MONTHLY fee (until we have such insurance provided and approved), and you agree to pay the fee.

Please submit your Insurance Certificates by uploading them to our Customer Center using the instructions below.

If you have questions about how to register for our Customer Center, please call us at 888-272-1800.

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Manage Your Ameris Bank Account Online

Customer Number: 486500

* Your Invoices Are Now Available Online *
Start Managing Your Account Today!

SIGN UP NOW

Click the button or type this URL in your Internet browser to begin:

www.balboacapital.com/customer-center/login

Need to make a payment online or review your current invoice? Now you can do both… and much more. Our online account management platform enables you to quickly and safely access your account information.

- Submit payments online
- Sign up for Automatic Payments
- Request an Address Change
- View Your Invoices
- Request Information Online
- Apply for a New Agreement
- Get Answers to Frequently Asked Questions

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Important Information

Regarding Your Agreement Number: 546134-000

Date: July 29 2025
Debtor Name: NORTHEAST FISH CO., LLC
Debtor Address: 800 Food Center Drive
Bronx, NY 10474

Dear Valued Customer,

Ameris Bank is pleased to be working with you to earn your business and complete your vehicle financing transaction. We strive to provide the best customer service possible, so feel free to call your Account Executive with any questions you may have. Enclosed you will find the necessary documents to complete the financing process.

Review

Please complete and sign the documents as indicated and return them to your Ameris Bank Account Executive listed below:

Note: If the transaction is over $250K, Email the documents and forward the originals via overnight mail to the following address:

Ameris Bank
ATTN: Business Center
575 Anton Blvd, Suite 1080
Costa Mesa, CA 92626

Copy

Please ensure to provide the following items:

- **Tax ID Number:** 86-3140139
- **Email Address:** jim@fiordfishmarket.com
- **Mobile Number:** 203-448-0547
- **Tax Exemption Certificate** (If available)
- **Copy of current and valid driver's license for each of the signors and guarantors.** *Best results can be obtained by a cell phone picture.*

If you have any questions, please contact your Account Executive Scott Kelbel at 949-399-6362 .

Thank you for choosing Ameris Bank for you financing needs. Ameris Bank is here to help you get the equipment you need to help your business grow.

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EQUIPMENT FINANCING AGREEMENT ("Agreement")

Agreement # 546134-000

DEBTOR INFORMATION

Debtor Name:	Debtor's Address:	Collateral Location:
NORTHEAST FISH CO., LLC Phone: **203-997-2217** Federal Tax ID #: **86-3140139**	**800 Food Center Drive** **Bronx, NY 10474**	**(if different from Debtor's Address)** **160 East Putnam Avenue** **Cos Cob, CT 06807**

PAYMENT AND TERMS

Full Description of Collateral (Include Make Model, Serial Numbers) **2-2023 RAM PROMASTER 2500 VIN 1: 3C6LRVVG1PE562519 VIN 2: 3C6LRVVG3PE533006**	**Collateral Cost:** **$157,881.84**	**Initial Payment(Debtor requests that this amount be electronically debited)**
Term: **60-MONTHS** (Plus any Prefund or Per diem Period) Monthly Payment: **$3,201.00**	**Initial Payment Date:** 09/29/2025	**Total Amount Due:**

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TERMS OF EQUIPMENT FINANCING AGREEMENT

Ameris Bank ("Creditor") and Debtor agree as follows:

1. SECURITY INTEREST: Debtor hereby grants Creditor a security interest under the Uniform Commercial Code in the above property and equipment (collectively the "Collateral" and individually an "Item of Collateral"). Such security interest is granted to secure performance by Debtor of its obligations hereunder and under any other present or future agreement with Creditor. Debtor shall insure that such security interest is and shall remain a sole first lien security interest. DEBTOR HEREBY AUTHORIZES CREDITOR TO FILE A COPY OF THIS AGREEMENT AS A FINANCING STATEMENT AND APPOINTS CREDITOR OR ITS DESIGNEE AS DEBTOR'S ATTORNEY-IN-FACT TO EXECUTE AND FILE, ON DEBTOR'S BEHALF, FINANCING STATEMENTS COVERING THE COLLATERAL.

2. COMMENCEMENT DATE: This Agreement shall commence upon verification of the delivery of the Collateral in a form acceptable to Creditor ("Commencement Date").

3. NO AGENCY. DEBTOR ACKNOWLEDGES THAT NO SUPPLIER OR INTERMEDIARY NOR ANY AGENT OF EITHER THEREOF IS AN AGENT OF CREDITOR AND FURTHER THAT NONE OF SUCH PARTIES IS AUTHORIZED TO WAIVE OR ALTER ANY ITEM OR CONDITION OF THIS AGREEMENT. ***THE SUPPLIER IS NOT AN AGENT OF CREDITOR'S AND NOTHING THE SUPPLIER STATES CAN AFFECT DEBTOR'S OBLIGATION UNDER THIS AGREEMENT. DEBTOR WILL CONTINUE TO MAKE ALL PAYMENTS UNDER THIS AGREEMENT REGARDLESS OF ANY CLAIM OR COMPLAINT AGAINST SUPPLIER.***

4. PAYMENTS; PER DIEM EXPENSE REIMBURSEMENT: Debtor shall repay Creditor the above Monthly Payments in the number of monthly installments indicated above, plus the Per Diem Expense reimbursement as described in this paragraph. The initial Monthly Payment shall be deemed due as of the date indicated above and subsequent Monthly Payments shall be due on the same day of each month thereafter until paid. The first payment we will charge you shall be a pro rata portion of the Monthly Payment based on a daily charge of one-thirtieth (1/30th) or .03333% of the Monthly Payment calculated from number or days from the Commencement Date to the start of the base term (the "Per Diem") and shall be due and payable on a date selected by Creditor. Debtor acknowledges that: a) Creditor may charge up to thirty (30) days of Per Diem; and b) **the Per Diem is not credited against the Monthly Payments and is in addition to the Term indicated above**. All Monthly Payments, Per Diem and other payments due under this Agreement or any other agreement with us (collectively "Obligation" or "Obligations") are payable in U.S. dollars, and may be adjusted upward or downward no more than ten percent (10%) to reflect actual costs. All other amounts due thereunder shall be due upon Debtor's receipt of Creditor's invoice. Advance payments, which are the first and last Monthly Payments, shall be applied to the last Monthly Payment in reverse order until exhausted; provided that if there is a default, any payments under this Agreement may be applied to the Obligations at Creditors discretion. In the event Debtor signs this Agreement, but the Agreement is not effected or signed by Creditor, the advanced payments, documentation fee and security deposit may be retained by Creditor so as to compensate Creditor for its processing costs, labor, and other expenses.

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If this Agreement specifies that a Security Deposit is required, then to secure Debtor's timely and full performance of its Obligations under this Agreement, Debtor will deposit the amount so specified with Creditor. The Security Deposit will be non-interest bearing and may be commingled with other Creditor funds. Within fifteen (15) days after written notice to Debtor that all or any part of the Security Deposit has been used to satisfy any of the Obligations, Debtor will deposit with Creditor an amount sufficient to restore the Security Deposit to the required amount. Upon expiration or termination of this Agreement, if no default by Debtor under this Agreement exists, Creditor will return to Debtor any unused portion of the Security Deposit without interest.

5. NON CANCELABLE AGREEMENT; NO PREPAYMENT, NO OFFSET, THIS AGREEMENT IS NON CANCELABLE BY DEBTOR FOR ANY REASON WHATSOEVER. DEBTOR MAY REPAY THE MONTHLY PAYMENTS ONLY IN ACCORDANCE HEREWITH. ALL PAYMENTS HEREUNDER ARE TO BE MADE WITHOUT OFFSET.

6. FINANCING. THIS AGREEMENT IS SOLELY A COMMERCIAL AND BUSINESS FINANCING AGREEMENT. SEE ADDITIONAL TERMS AND CONDITIONS CONTAINED HEREIN WHICH ARE PART OF THIS AGREEMENT.

7. NO WARRANTIES. CREDITOR MAKES NO WARRANTY, EXPRESS OR IMPLIED, REGARDING THE COLLATERAL AND ITS FITNESS, MERCHANTABILITY OR PROFITABILITY FOR ANY PURPOSE WHATSOEVER. DEBTOR AGREES THAT DEBTOR HAS SELECTED THE SUPPLIER AND EACH ITEM OF COLLATERAL BASED UPON DEBTOR'S OWN JUDGMENT AND DISCLAIMS ANY RELIANCE UPON ANY STATEMENTS OR REPRESENTATIONS MADE BY CREDITOR. CREDITOR DOES NOT TAKE RESPONSIBILITY FOR THE INSTALLATION OR PERFORMANCE OF THE COLLATERAL.

8. LOCATION; INSPECTION; USE. Debtor shall keep, or, as to an Item of Collateral which is movable, permanently garage and not remove from the United States, as appropriate, each Item of Collateral in Debtor's possession and control at the Collateral Location or at such other location to which such Item may have been moved with the prior written consent of Creditor, Upon request, Debtor shall advise Creditor as to the exact location of an Item of Collateral. Each Item shall be used solely for commercial or business purposes and operated in a careful and proper manner an in compliance with all applicable governmental requirements, all requirements of insurance policies carried hereunder and all manufacturer's instructions and warranty requirements.

9. ALTERATIONS; SECURITY INTEREST COVERAGE. Without Creditor's prior written consent, Debtor shall not make any alterations, additions or improvements to an Item of Collateral which detract from its economic value or functional utility. All additions and improvements made to an Item of Collateral shall be deemed accessions thereto, and shall not be removed if removal would impair the Item's economic value or functional utility. Creditor's security interest shall cover all modifications, accessions, additions to and replacements and substitutions for the Collateral. Debtor will not make any replacements or substitutions without Creditor's prior written consent.

10. MAINTENANCE. Debtor shall maintain the Collateral in good repair, condition and working order. Debtor shall cause at its sole expense all repairs required to maintain the Collateral in such condition to be made promptly by qualified parties. Debtor will cause each Item of Collateral for which a service contract is generally available to be covered by such a contract which provides coverage typical as to property of the type involved and is issued by a competent servicing entity.

11. LOSS AND DAMAGE; CASUALTY VALUE. In the event of loss, theft, destruction or requisition of or damage to an Item of Collateral from any cause Debtor shall give Creditor prompt notice thereof and shall thereafter place the Item in good repair, condition and working order; provided, however, that if such Item is determined by Creditor to be lost, stolen, destroyed or damaged beyond repair or is requisitioned or suffers a constructive total loss under an insurance policy carried hereunder Debtor shall cause the Collateral to be replaced and shall immediately provide Creditor with information necessary to perfect Creditor's security interest in the replacement Collateral, or shall pay Creditor the "Casualty Value" of such Item which shall equal (a) any amounts due at the time of such payment, and (b) each future Monthly Payment due with respect to such Item discounted at three percent (3%) per annum simple interest from the date due to the date of such payment.

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12. PAYMENT OF OBLIGATIONS: Payment of the Obligations, the Initial Payment/Total Amount Due, the amounts described in section #14, and any other amounts owed under this Agreement shall be made by electronically withdrawing funds from the bank account listed below in this paragraph, or on which Debtor's deposit check was drawn, or the account from which a cancelled or voided check provided by the Debtor can be drawn, or any other account from which Debtor paid any Obligation under this Agreement. **Debtor initiates each transaction** and authorizes Creditor to debit from any of the foregoing accounts the Obligations, the Initial Payment/Total Amount Due, amounts described in section #14, and any other amounts owed under this Agreement and agrees that Creditor, or its assignees, has the right, but not the obligation, to do so. Debtor acknowledges that, if Creditor assigns this Agreement to a third party, the assignee is also authorized to debit any of the foregoing accounts outlined above. If Debtor would prefer to authorize Creditor to debit another account, fill in the blanks provided below along with a copy of a voided check from the specified account. Debtor understands and agrees that this authorization to electronically withdraw funds from any of the foregoing accounts is irrevocable.

Bank Name: Bank of America Bank City, State: Charlotte, NC

ABA Routing No: 011900254 Account No: 385021588080

Business Name on Account: Northeast Fish Co

Street Address on Account: PO Box 365 City, State on Account: Cos Cob, CT

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13. TITLING. If requested by Creditor, Debtor shall cause an Item of Collateral subject to title registration laws to be titled as directed by Creditor. Debtor shall advise Creditor promptly as to any necessary re-titling. Debtor shall cause all documents of title to be furnished Creditor within sixty (60) days of the date of any titling effected by Debtor. All expenses, fees, costs and charges associated with re-titling to secure Creditors perfected lien rights shall be borne solely by Debtor and reimbursed to Creditor by Debtor.;

14. TAXES, CHARGES, AND FEES. Debtor agrees to pay when due all taxes (including personal property tax, fines and penalties) and fees that levied by any State, County or Federal Agency relating to this Agreement or the Collateral. If Creditor pays any of the above taxes on behalf of the Debtor, so as to reimburse Creditor for processing and administrative expenses and time, Debtor will pay a processing fee for each payment. In addition, Debtor also agrees to pay Creditor any UCC filing fees mandated by the Uniform Commercial Code or other law to protect and secure the Collateral and reimburse Creditor for all costs and expenses involved in documenting and servicing this transaction. An inspection of the Collateral will be conducted to evidence the condition of the Collateral and a fee will be charged for this service, which Debtor agrees to reimburse to Creditor. Debtor further agrees to pay Creditor an origination or loan Fee on or before the date the first Monthly Payment is due, the purpose of this fee is to arrange in advance all the necessary funding sources and process credit and paperwork. Debtor also acknowledges that all such fees and charges are in addition to the Monthly Payments, and that all such fees may not only cover Creditors costs but they may also include a profit or administrative expense reimbursement of processing.

15. INSURANCE. Debtor agrees to maintain, at Debtor's expense, "Special Form" property insurance protecting the Collateral for its full replacement value, **naming Creditor as a loss payee on a "Creditor's Loss Payable" endorsement**; and public liability insurance, in amounts acceptable to Creditor, naming Creditor as an additional insured (together "Required Insurance"). Debtor must provide Creditor satisfactory written evidence of Required Insurance within thirty (30) days of the commencement date of this Agreement or of any subsequent written request.

16. NONCOMPLIANCE FEE. If Debtor fails to comply with the obligations set forth in Section 15, at Creditor's election, Creditor may assess a monthly fee of 0.60% of the Collateral Cost ("Noncompliance Fee"). This Noncompliance Fee is calculated with reference to additional risk, represents the basis on which Creditor is willing to forbear from exercising remedies and continue this Agreement without the Required Insurance, and also constitutes additional profit for Creditor. Debtor will receive no insurance coverage by paying this Noncompliance Fee, and will not be released from any obligations. **Creditor does not sell or place insurance**. Creditor will cease charging this Noncompliance Fee thirty (30) days after Debtor provides satisfactory proof of the Required Insurance.

17. CREDITOR'S PAYMENT. If Debtor fails to perform any of its obligations hereunder, Creditor may perform such obligation, and Debtor shall (a) reimburse Creditor the cost of such performance and (b) pay Creditor the service charge contemplated in paragraph 14.

18. INDEMNITY. Debtor shall indemnify, defend and hold Creditor harmless against any claim, action, liability or expense, including attorneys' fees and court costs, incurred by Creditor related to this Agreement. While it is not anticipated that Creditor shall have any liability for torts related to the Collateral, this indemnity covers tort proceedings including any strict liability claim, any claim under another theory related to latent or other defects and any patent, trademark or service mark infringement claim.

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19. DEFAULT. Any of the following constitutes an event of default hereunder: (a) Debtor's failure to pay any amount hereunder, within three (3) business days of when due; (b) Debtor's default in performing any other obligation hereunder or under any agreement between Debtor and Creditor; (c) death or judicial declaration of competency of Debtor, if an individual; (d) the filing by or against Debtor of a petition under the Bankruptcy Code or under any other insolvency law or law providing for the relief of debtors, including, without limitation, a petition for reorganization, agreement or extension; (e) the making of an assignment of a substantial portion of its assets by Debtor for the benefit of creditors, appointment of a receiver or trustee for Debtor or for any Debtor's assets, institution by or against Debtor of any other type of insolvency proceeding or other proceeding contemplating settlement claims against or winding up of the affairs of Debtor, Debtor's cessation of active business affairs or the making by Debtor of a transfer of a material portion of Debtor's assets or inventory not in the ordinary course of business; (f) the occurrence of an event described in (c), (d), or (e) as to a guarantor or other surety of Debtor's obligations hereunder, (g) any misrepresentation of a material fact in connection herewith by or on behalf of Debtor; (h) Debtor's default under a lease or agreement providing financial accommodation with a third party or (i) Creditor shall in good faith deem itself insecure as a result of a material adverse change in Debtor's financial condition or otherwise.

20. REMEDIES. Upon the occurrence of an event of default Creditor shall have the right, options, duties and remedies of a secured party, and Debtor shall have the rights and duties of a Debtor, under the Uniform Commercial Code (regardless of whether such Code or a law similar thereto has been enacted in a jurisdiction wherein the rights or remedies are asserted) and in connection therewith Creditor may: (a) sue for and recover from Debtor the sum of: (1) all unpaid Monthly Payments and other payments, including late charges and interest, due under this Agreement then accrued, plus all accelerated future payments due through the last day of the term of this Agreement, discounted to its present value at a discount rate of three percent (3%); (2) any and all costs or expenses paid or incurred by Creditor in connection with the repossession, holding, repair, reconditioning and subsequent sale, lease or other disposition of the Collateral, including but not limited to attorney's fees and costs, whether or not litigation is commenced; (3) all other costs or expenses paid or incurred by Creditor at any time in connection with the execution, delivery, administration, amendment and enforcement or exercise of any of the Creditor's rights and remedies under this Agreement, including, but not limited to, attorneys' fees and costs, whether or not litigation is commenced, and taxes imposed by any governmental agency; (4) any actual or anticipated loss of federal or state tax benefits to Creditor (as determined by Creditor) resulting from Debtor's default or Creditor's repossession or disposition of the Collateral; and (5) any and all other damages proximately caused by Debtor's default; (b) declare the Casualty Value or such lesser amount as may be set by law immediately due and payable with respect to any or all Items of Collateral without notice or demand to Debtor; (c) take possession of and, if deemed appropriate, render unusable any or all Items of Collateral, without demand or notice, wherever located, without any process of law and without liability for any damages occasioned by such taking of possession including damages to contents; (d) require Debtor to assemble any or all Items of Collateral at a location in reasonable proximity to their designated location hereunder, (e) upon notice to Debtor required by law, sell or otherwise dispose of any Items of Collateral, whether or not in Creditor's possession, in a commercially reasonable manner at public or private sale and apply the net proceeds of such sale after deducting all costs of such sale, including, but not limited to, costs of transportation, repossession, storage, refurbishing, advertising and brokers fees, to the obligations of Debtor hereunder with Debtor remaining liable for any deficiency and with any excess being returned to Debtor or (f) utilize any other remedy available under the Uniform Commercial code or otherwise to Creditor. All remedies are cumulative. Any sale may be adjourned by announcement at the time and place appointed for such sale without further published notice, and Creditor may, if permitted by law, bid at any such sale.

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21. LITIGATION EXPENSES. Debtor shall pay Creditor its costs and expenses not offset as provided in paragraph 19, including repossession and attorneys' fees and court costs, incurred by Creditor in enforcing this Agreement. This obligation includes the payment of such amounts whether an action is filed and whether an action which is filed is dismissed.

22. ASSIGNMENT. Without the prior written consent of Creditor, Debtor shall not sell, lease or create or allow any lien other than Creditor's security interest against an Item of Collateral or assign any of Debtor's obligations hereunder. Debtor's obligations are not assignable by operation of law. Consent to any of the foregoing applies only in the given instance. Creditor may assign, pledge or otherwise transfer any of its rights **but none of its obligations** hereunder without notice to Debtor. If Debtor is given notice of any such assignment, Debtor shall acknowledge receipt thereof in writing and shall thereafter pay any amounts due hereunder as directed in the notice. The rights of an assignee to amounts due hereunder shall be free of any claim or defense Debtor may have against Creditor, and Debtor agrees not to assert against an assignee any claim or defense which Debtor may have against Creditor. Subject to the foregoing, this Agreement inures to the benefit of, and is binding upon, the heirs, legatees, personal representatives, successors and assigns of the parties.

23. PERSONAL PROPERTY. Debtor shall mark the Collateral or its location as requested by Creditor to indicate Creditor's security interest. As between the parties the Collateral shall at all times be deemed personal. Debtor will provide Creditor any real property waivers requested by Creditor as to the real property where an Item of Collateral is or is to be located.

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24. LATE PAYMENT. If Debtor fails to pay any amount to be paid hereunder within three (3) days of when due, Debtor agrees to pay us (a) eighteen percent (18%) of each such late payment (to the extent permitted by law) (b) amounts Creditor pays others in connection with the collection of the payment and (c) interest on such unpaid amount from the date due until paid at the lesser of eighteen percent (18%) per annum or the highest rate permitted by applicable law. No more than a single charge under subparagraph (a) will be due in any given month.

25. SECURITY INTEREST RELEASE. At such time as there is no outstanding obligation secured hereby (including obligations under other agreements contemplated under paragraph 1), Creditor shall provide Debtor such termination statements related to the Collateral as Debtor shall reasonably request. Debtor shall be responsible for the filing of each such UCC3 termination statement at its expense.

26. ADDITIONAL DOCUMENTS. Debtor shall provide to Creditor such financing statements and similar documents as Creditor shall request. Debtor authorizes Creditor, where permitted by law, to make filings of such documents without Debtor's signature. Debtor shall reimburse Creditor for all search and filing fees incurred by Creditor related hereto.

27. NOTICES. Except as otherwise provided in this Agreement, notice under this Agreement must be in writing. Notices will be deemed given when deposited in the U.S. mail, postage prepaid, first class mail; when delivered in person; or when sent by registered mail; by certified mail; or by nationally recognized overnight courier. Notice to Debtor will be sent to Debtor's last known address in Creditor's records for this Loan. Notice to Creditor may be sent to, Ameris Bank, 575 Anton Blvd, Suite 1080, Costa Mesa, CA 92626.

28. GENERAL. This Agreement as well as the delivery and acceptance receipt(s) for the Collateral constitute the entire agreement between the parties, and supersede all prior negotiations, written or oral, including any written offer or proposal describing and/or summarizing the terms of any proposed lease/financing. This Agreement cannot be modified except in writing signed by the party against who enforcement is sought. Debtor represents to Creditor that it shall not allege in any court proceeding that the parties entered into an oral modification of this Agreement, and further agrees, that in any event, any such oral modification shall not be enforceable unless it is reduced to a writing signed by the party against whom enforcement is sought. Any waiver by Creditor must be in writing, and forbearance shall not constitute a waiver. If there is more than one Debtor named in this Agreement, the liability of each shall be joint and several. The titles to the paragraphs of this Agreement are solely for the convenience of the parties and are not an aid in the interpretation. Any provision declared invalid shall be deemed severable from the remaining provisions which shall remain in full force and effect. Time is of the essence of this Agreement. The obligations of Debtor shall survive the release of the security interest in the Collateral.

29. DEBTOR'S WARRANTIES. DEBTOR CERTIFIES AND WARRANTS:(a) THE FINANCIAL AND OTHER INFORMATION WHICH DEBTOR HAS SUBMITTED, OR WILL SUBMIT, TO CREDITOR IN CONNECTION WITH THIS AGREEMENT IS, OR SHALL BE AT TIME OF SUBMISSION, TRUE AND COMPLETE; (b) THIS AGREEMENT HAS BEEN DULY AUTHORIZED BY DEBTOR AND UPON EXECUTION BY DEBTOR SHALL CONSTITUTE THE LEGAL, VALID AND BINDING OBLIGATION, CONTRACT AND AGREEMENT OF DEBTOR ENFORCEABLE AGAINST DEBTOR IN ACCORDANCE WITH ITS TERMS; AND (c) EACH SHOWING PROVIDED BY DEBTOR IN CONNECTION HEREWITH MAY BE FULLY RELIED UPON BY CREDITOR NONWITHSTANDING ANY TECHNICAL DEFICIENCY IN ATTESTATION OR OTHERWISE. THE PERSON EXECUTING THIS AGREEMENT ON BEHALF OF DEBTOR WARRANTS THAT PERSON'S DUE AUTHORITY TO DO SO. DEBTOR FURTHER WARRANTS THAT EACH ITEM OF COLLATERAL SHALL AT THE TIME CREDITOR FUNDS THE TOTAL ADVANCE BE OWNED BY DEBTOR FREE AND CLEAR OF LIENS OR ENCUMBRANCES AND BE IN GOOD CONDITION AND WORKING ORDER.

30. GOVERNING LAW (EXCLUSIVE AND MANDATORY TO CALIFORNIA). Our relationship (including this Agreement and any claim, dispute or controversy (whether in contract, tort, or otherwise) at any time arising from or relating to this Agreement) will be exclusively governed by, and this Agreement will be exclusively construed in accordance with California law without regard to internal principles of conflict of laws. The legality, enforceability and interpretation of this Agreement and the amounts contracted for, charged and reserved under this Agreement will be exclusively governed by such laws.

31. CONSENT TO EXCLUSIVE AND MANDATORY JURISDICTION AND VENUE OF CALIFORNIA. Debtor submits to the jurisdiction of California and agrees that any action or proceeding to enforce this Agreement, or any action or proceeding arising out of or related to this Agreement will be exclusively commenced, initiated and litigated in the California State Courts of Orange County California and/or the United States District Court for the Central District of California, Santa Ana Division. Debtor understands and agrees that (i) Creditor is located in Costa Mesa, California, (ii) Creditor makes all credit decisions from Creditor's office in Costa Mesa, California, (iii) this Agreement is made and deemed to be performed in Costa Mesa, California (that is, no binding contract will be formed until Creditor receives and accepts Debtor's signed Agreement in Costa Mesa, California) and (iv) Debtor's payments are not accepted until received by Creditor in Costa Mesa, California. Creditor, at its sole discretion, may commence any action seeking judicial intervention to recover the Collateral in any State Court where the Collateral may be physically located.

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32. COUNTERPARTS AND FACSIMILE SIGNATURES. If this Agreement was sent electronically, Debtor hereby warrants that this Agreement has not been altered in any way. Any alteration or revision to any part of this Agreement or any attached documents will make all alterations or revisions non-binding and void. Only one counterpart of this Agreement and of each Schedule, Addenda, or Exhibit attached hereto shall bear our signature and shall be marked "Original". To the extent that any Equipment Financing Agreement, Schedule, Addenda or Exhibit hereto constitute chattel paper (as that term is defined by the Uniform Commercial Code), a security interest may only be created in this Agreement, Schedule, Addenda or Exhibit that bears our signed signature and is marked "Original". This Agreement and any documents pertaining to this Agreement may be executed in counterparts. Delivery of this Agreement bearing a facsimile signature, electronic signature, or other signature which is not in ink, shall have the same force and effect as if this document bore an original ink signature. The electronic transmission of this Agreement shall have the same force and effect as delivery of an original and shall be legally admissible under the best or original evidence rule. DEBTOR WARRANTS AND REPRESENTS THIS DOCUMENT IS A COMPLETE AND FULLY NEGOTIATED VERSION, IT CONTAINS NO BLANK SPACES AND REPRESENTS THE FINAL AND AGREED UPON TERMS PRIOR TO SIGNATURE EXECUTION.

(CREDITOR)	**(DEBTOR)**
Ameris Bank **575 Anton Blvd** **Suite 1080** **Costa Mesa, CA 92626**	**NORTHEAST FISH CO., LLC** **800 Food Center Drive** **Bronx, NY 10474**
By: eSigned By: Lauren Schott Jul 31, 2025 10:03:16 AM PDT	By: eSigned By: James Thistle Jul 29, 2025 11:16:50 AM PDT sign
Vice President	Name: James Thistle Title: MANAGING MEMBER
Date: 07/31/2025	Date: 07/29/2025 Home Phone: (203) 448-0547

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A DIVISION OF AMERIS BANK

Important Insurance Information

Insurance Requirement Notification

Insurance Carrier: The Hartford
Insurance Carrier's Name

One Hartford Plaza, Hartford, CT
Address

Marsha Brownell
Contact Name

mbrownell@toofer.com
Email

(203) 834-5900
Telephone Number

Review

Agreement Number: 546134-000

Customer Name: NORTHEAST FISH CO., LLC

Customer Address: 800 Food Center Drive
Bronx, NY 10474

Equipment Description: 2-2023 RAM PROMASTER 2500 VIN 1: 3C6LRVVG1PE562519 VIN 2: 3C6LRVVG3PE53300

Copy

The subject financing agreement requires you to keep the Equipment insured against all risks of loss or damage in an amount not less than the replacement cost of the equipment. You will also need to obtain and maintain liability insurance.

Your Dealer or Sales Rep will provide you with the minimum coverages necessary.

EFACV1680

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A DIVISION OF AMERIS BANK

Addendum "B"

To **NORTHEAST FISH CO., LLC**

Equipment Finance Agreement No. **546134-000**

Reference is made to the above-referenced Equipment Finance Agreement ("Agreement") dated 07/31/2025 by and between NORTHEAST FISH CO., LLC as Debtor, and AMERIS BANK as Creditor.

Provided that no event of default now exists or has ever existed, Debtor may prepay its obligations under the Agreement in full, but not in part, in advance of the contractually scheduled end of term.

The early payoff shall be calculated as follows:

1. Payment in full of the current net investment as calculated by Creditor, plus all accrued and unpaid late charges and/or fees and/or taxes, and/or other amounts due under this Agreement ("Prepayment Amount"). Plus,
2. (x) 1% of the current net investment as of the payoff date, as an early termination fee ("Prepayment Fee"), multiplied by (y) the number of full twelve-month periods remaining.

Debtor and Creditor acknowledge and agree that the Prepayment Fee is a reasonable estimate of the actual or anticipated harm sustained by Creditor for Debtor's early payoff. For purposes of calculating the Prepayment Amount and Prepayment Fee, any unearned interest that would accrue after the payoff date shall be excluded from the calculation of the net investment amount as of the payoff date. Debtor will not receive any rebate or credit for interest relating to any period prior to the payoff date.

In all other respects, the terms and conditions of the Agreement, as originally set forth, shall remain in full force and effect.

IN WITNESS WHEREOF, the parties hereto, by their authorized signatories, have executed this Addendum "B" as of the date set forth below their respective signatures.

Delivery of this document bearing a facsimile signature or signatures shall have the same force and effect as if the document bore an original signature.

In the event of an error or omission in the calculation of the Prepayment Amount or the Prepayment Fee, Creditor reserves the right to re-calculate the payoff and bill and collect for any difference.

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Creditor:
Ameris Bank

By: eSigned By: Lauren Schott Jul 31, 2025 10:03:24 AM PDT
Vice President

Date: 07/31/2025

Debtor:
NORTHEAST FISH CO., LLC

By: eSigned By: James Thistle Jul 29, 2025 11:19:53 AM PDT
Name: James Thistle
Title: MANAGING MEMBER

Date: 07/29/2025

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A DIVISION OF AMERIS BANK

PERSONAL GUARANTY

Equipment Financing Agreement # 546134-000

THIS PERSONAL GUARANTY CREATES SPECIFIC LEGAL OBLIGATIONS. When we use the words **you** and **your** in this Personal Guaranty, we mean the **Personal Guarantor (s)** indicated below. When we use the words **we, us** and **our** in this Personal Guaranty, we mean **AMERIS BANK,** its successors and assigns.

In consideration of our entering into the equipment financing agreement above ("EFA"), you unconditionally and irrevocably guarantee to us, our successors and assigns, the prompt payment and performance of any and all obligations of the Customer ("Debtor") under the EFA and any other financial transaction of any kind whatsoever, whether now existing or hereafter arising with us. You agree that this is a guaranty of payment and not of collection, and that we can proceed directly against you without first proceeding against the Debtor or against the Equipment covered by the EFA or against any collateral or security held by us. You waive all defenses and notices, including those of protest, presentment and demand. You agree that we can renew, extend or otherwise modify the terms of the EFA and you will be bound by such changes. If the Debtor defaults under the EFA, you will immediately perform all obligations of the Debtor under the EFA, including, but not limited to, paying all amounts due under the EFA. You will pay to us all expenses (including attorneys' fees) incurred by us in enforcing our rights against you or the Debtor. This is a continuing guaranty that will not be discharged or affected by your death and will bind your heirs and personal representatives. You waive any rights to seek repayment from the Debtor in the event you pay us. If more than one personal guarantor has signed this Personal Guaranty, each of you agree that your liability is joint and several. You authorize us or any of our affiliates to obtain credit bureau reports regarding your personal credit, and make other credit inquiries that we determine are necessary.

THIS PERSONAL GUARANTY IS GOVERNED BY THE LAWS OF THE STATE OF CALIFORNIA. YOU CONSENT TO THE JURISDICTION OF THE COUNTY OF ORANGE IN THE STATE OF CALIFORNIA. YOU HEREBY EXPRESSLY WAIVE THE RIGHT TO TRIAL BY JURY.

"Delivery of this document bearing a facsimile signature or signatures shall have the same force and effect as if the document bore an original signature."

Original

sign X eSigned By: *James Thistle* Jul 29, 2025 11:20:51 AM PDT

James Thistle — **Name**

07/29/2025 — **Date**

9 Lillian Terrace
Darien, CT 10474
Home Street Address, City, State, Zip Code

041803480 — **Social Security Number**

(203) 448-0547 — **Phone Number**

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CREDITOR: Ameris Bank

Equipment Financing Agreement Number: **546134-000**

VEHICLE ADDENDUM – I-A

ADDENDUM TO EQUIPMENT FINANCING AGREEMENT OF EQUIPMENT DATED 07/31/2025

THE TERM "VEHICLE" AS USED HEREIN SHALL BE DEEMED TO REFER
TO AN ITEM OF EQUIPMENT AS DEFINED IN THE EQUIPMENT FINANCING AGREEMENT

HEAVY VEHICLE USE TAX (Federal Highway Use Tax): Debtor will file all returns and pay all (Federal) Heavy Vehicle Use Tax, which may be assessed or due on each Vehicle and Debtor agrees to indemnify Creditor for such taxes. In the event of default any expenses incurred will be included as Equipment Financing Agreement damages and due from the Debtor.

OBLIGATION TO PAY MISCELLANEOUS CHARGES: Debtor agrees to pay all storage charges, parking charges and fines. Debtor will pay any fees (including Vehicle registration and inspection fees) or taxes which may be imposed with respect to each Vehicle by any governmental authority. In the event of default any expenses incurred will be included as Equipment Financing Agreement damages and due from the Debtor.

TITLING AND REGISTRATION: Debtor is the owner of the Equipment and Debtor guarantees that physical titling of the Equipment will be accomplished in a timely manner. Each Vehicle subject to this Equipment Financing Agreement shall bear license plates and the title thereto shall be registered in the name of Debtor, with Creditor listed as the lienholder. Annual registration and license fees shall be paid by Debtor. Debtor agrees to provide to Creditor the original title documentation or DMV receipt. This will be provided within 30 days of when Debtor receives it from the titling authority. If Debtor fails to do so, Debtor will be in default of this Agreement. Debtor further agrees to pay a month to month unobtained titling fee in the amount of the greater of .008 percent of the Equipment cost or $100 if we have not received the **PERFECTED TITLE LIEN** in our office and agree to indemnify Creditor from any damage or loss we incur from Debtor's failure to do so. sign [ ] **(initial)** Debtor, at Debtor's sole cost, will obtain and maintain all registrations, titling, plates, permits and licenses necessary for use of the Equipment in Debtor's business, and in conformance with the laws of the state within in the principal place of business of the Debtor is located or in the principal place where the Vehicle is garaged. Debtor further grants Creditor limited power of attorney to sign off on any title documentation in case of any repossession or termination. Debtor also grants Creditor security interest in the Equipment if this agreement is deemed a secured transaction and Debtor authorizes Creditor to record a UCC-1.

INSURANCE: Debtor shall procure and maintain in full force and effect at all times, at Debtor's expense, with a responsible insurance company acceptable to Creditor, insurance coverage for the maximum insurable value of the Equipment insuring Debtor and Creditor, as their interests may appear, against liability for death, bodily injury and property damage resulting from ownership, maintenance, use or operation of the Equipment, with minimum coverage per occurrence as follows:

Minimum limits for each Vehicle to be maintained by Debtor:

Bodily injury liability per individual	$500,000.00	Fire, Theft and Comprehensive	Full Value
Bodily injury liability per accident	$500,000.00	Collision Value Deductible (deductible part to be paid by Debtor)	
Property damage liability	$250,000.00		
OR Combined Single Limits	$750,000.00		

Such continuous insurance coverage shall be provided for the period from delivery of the first item of Equipment to Debtor to the date of termination of this Equipment Financing Agreement. Debtor shall provide Creditor copies of the insurance policies or other evidence of the maintenance of such insurance. Creditor **must** be named on the policy as **"additional insured"** and **"loss payee"**.

The following shall constitute an additional Event of Default under the Equipment Financing Agreement: "expiration or cancellation of any policy of insurance agreed to be paid for by Debtor, or the cessation in force according to its original terms of any such insurance, or of any extension or renewal thereof, during the entire term of this Equipment Financing Agreement".

EXCEPT IN THE EVENT OF DIRECT CONFLICT BETWEEN THIS ADDENDUM AND THE ABOVE REFERENCED EQUIPMENT FINANCING AGREEMENT, THE PROVISIONS OF THIS ADDENDUM SUPPLEMENT SAID EQUIPMENT FINANCING AGREEMENT AND SHALL NOT BE DEEMED TO MODIFY, REPLACE, OR CANCEL ANY PROVISION OF SAID EQUIPMENT FINANCING AGREEMENT, IN THE EVENT OF CONFLICT BETWEEN THIS ADDENDUM AND SAID EQUIPMENT FINANCING AGREEMENT, THE PROVISIONS OF THIS ADDENDUM SHALL CONTROL.

"Delivery of this document bearing a facsimile signature or signatures shall have the same force and effect as if the document bore an original signature."

CREDITOR:
Ameris Bank

By: eSigned By: *Lauren Schott* Jul 31, 2025 10:03:32 AM PDT

Title: Vice President

Date: 07/31/2025

sign

DEBTOR:
NORTHEAST FISH CO., LLC

By: eSigned By: *James Thistle* Jul 29, 2025 11:21:07 AM PDT

Name: James Thistle

Title: MANAGING MEMBER

Date: 07/29/2025

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NORTHEAST FISH CO., LLC

July 30 2025
Ameris Bank
Attn: Funding Supervisor
575 Anton Blvd, Suite 1080
Costa Mesa, CA 92626

SUPPLIER PAYMENT DIRECTIVE

Re: Equipment Financing Agreement ("EFA") 546134-000 between Ameris Bank and NORTHEAST FISH CO., LLC ("DEBTOR")

We, the undersigned, hereby acknowledge that the Equipment described in the EFA referenced above has not been delivered and/or accepted by us and that, **by this letter, we are instructing you to PREFUND the Supplier listed below.** We further recognize and understand that, as a condition precedent for you to PREFUND the Supplier prior to delivery and/or acceptance of the Equipment described in the EFA above, we must ratify and affirm the terms and conditions contained in the EFA, and the Personal Guaranty. **WE AFFIRM THAT WE HAVE READ AND FULLY UNDERSTAND** the terms and conditions contained in the EFA, and the Personal Guaranty**. Any questions we had regarding those terms were fully explained and answered by legal counsel of our choice in advance of signing the aforementioned agreements and requesting this PRE-DELIVERY DISBURSEMENT.**

By signing below, we specifically authorize and request that Ameris Bank and/or its Assignee disburse proceeds as outlined below. We agree that all or some of the Equipment has not been delivered, installed and/or accepted and that all the terms and conditions of the EFA, and Personal Guaranty remain in full force and effect and that we are unconditionally bound to re-pay all amounts advanced under the EFA.

A facsimile or electronic copy of our signature shall be sufficient for Ameris Bank reliance upon this document and the unfettered enforcement of this document, the EFA, and Personal Guaranty as an original signature.

With regard to the above-captioned **WE HEREBY IRREVOCABLY AUTHORIZE AND DIRECT YOU TO PAY ON OUR BEHALF THE FOLLOWING SUPPLIERS AND AMOUNTS**:

SUPPLIER:	AMOUNT:	DATE:
EMERALD TRANSPORTATION SOLUTIONS	$ $157,586.84	07/30/2025
BALBOA DOC FEE	$ $495.00	07/30/2025
	$	
	$	
	$	

We recognize that Payment on our behalf to the Supplier does not obligate you to confirm the application of the Amounts thereof by the recipient(s).
We authorize Ameris Bank to amend any documents to reflect the correct descriptions and serial numbers of all items of Equipment wherever necessary.

Billing Contact: Name: Carolina Esquenazi Phone Number: (203) 769-5665 Email: Carolina@fjordfishmarket.com

Very truly yours,
NORTHEAST FISH CO., LLC

Signature: eSigned By: James Thistle Jul 30, 2025 9:33:24 AM PDT Date: 07/30/2025

Name: James Thistle Title: MANAGING MEMBER

Signature: eSigned By: James Thistle Jul 30, 2025 9:33:24 AM PDT

Signature: Signature Not Required

Name: James Thistle, Guarantor

Name: _____, Guarantor

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Change Addendum

Equipment Financing Agreement: 546134-000

Reference is made to the above-referenced Equipment Financing Agreement ("Equipment Financing") dated 7/31/2025 by and between NORTHEAST FISH CO., LLC, as Debtor, and **AMERIS BANK**, as Creditor.

Notwithstanding the terms and conditions contained in the Equipment Financing and to the limited extent hereof, Creditor and Debtor agree as follows:

Monthly Rent amount "**$3,201.00**" is hereby changed to "**$3,205.00**" and Debtor agrees to make such payments as set forth in the Equipment Financing.

The Collateral cost amount of "**157,881.84**" is hereby changed to "**158,081.84**".

In all other respects, the terms and conditions of the Equipment Financing, as originally set forth, shall remain in full force and effect.

IN WITNESS WHEREOF, the parties hereto, by their authorized signatories, have executed this Change Addendum on the date set forth below their respective signatures.

"Delivery of this document bearing a facsimile signature or signatures shall have the same force and effect as if the document bore an original signature."

Creditor:
AMERIS BANK

By: Lauren Schott
Vice President

Date: 7/31/2025

Debtor:
NORTHEAST FISH CO., LLC

sign **By:**
Name: James Thistle
Title: Managing Member

Date: 7/30/25

EFA332C